

HEADNOTE

“The principle of due process requires that when a new patent is added as a basis for a claim already pending, then the defendant shall be given the same time period to respond , and, if applicable, file a counterclaim in revocation , as would be the case when the amendment would have been lodged as a new action with respect to such patent.”

COURT

Court of Appeal Luxembourg

PATENT

EP 3611989

KEYWORDS

Time period for defence following a change...

PROCEEDINGS

Infringement action

Method and apparatus for transmitting
wireless local area network information

SUMMARY

The Court of Appeal Luxembourg ruled on an infringement action. The patent at issue relates to a method and apparatus for transmitting wireless local area network information. According to the headnotes of the decision, when a defendant faces a new patent added to an existing claim, procedural fairness requires that they receive the same response period and opportunity to file a revocation counterclaim as they would have if the new patent had been introduced through a separate action.